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Not too late to fix controversial Fast-track Approvals Bill

09 December 2024

Parliament is expected to pass the Fast-track Approvals Bill into law in the next few days.

"This highly contentious bill attracted record opposition with around 27,000 submissions, mostly opposed. It creates a fast-track, one-stop-shop for consenting projects of significant regional or national benefit and overrides environmental standards," said EDS CEO Gary Taylor.

"There have been some welcome changes to it since introduction. Notably, final decision-making on approvals has been shifted away from Ministers and placed in the hands of expert panels. That reduces the potential for corrupt practices once projects are in the fast-track process and restores some sense of confidence that there will be a proper consideration of applications.

"The idea of a fast-track process is not new. We had one under the Covid-19 Recovery (Fast-track Consenting) Act 2020, another under the Natural and Built Environment Act 2023, which has survived repeal of that law. A key difference is that this new Bill enables approvals under a range of other statutes, not just the Resource Management Act. That is not objectionable, if other provisions are appropriate.

“But they are not. The Bill retains several significant flaws that collectively mean that if enacted in its present form would make it the worst environmental legislation in our history, with scope for bad projects with significant adverse impacts to get approved.

“The biggest flaw is the biased purpose clause of the Bill, which takes primacy and enables development irrespective of environmental impacts. That is a crude and dangerous approach. If the clause was amended to give equal weight to the environment or to require approvals to be consistent with sustainable management, that would be a very significant improvement.

“Another flaw is that environmental advocates and communities are not entitled to submit on projects unless they are invited to do so. Giving such entities (including EDS) the right to make submissions on applications would enable the introduction of independent expert evidence to the evaluation process. Otherwise, panels will be unduly reliant on evidence from applicants with the public shut out from the process.

“Other objectionable matters needing attention at the Committee of the Whole House stage include the ability to consent most prohibited activities; the way panels are appointed with scope for Ministerial interference; the weak way the Bill deals with Water Conservation Orders and public conservation land; and the numerous ‘zombie’ projects in the proposed schedule that have already been declined consent but are now able to have another go.

“We therefore await the next stages of the Bill and any Amendment Papers with keen anticipation and a little bit of hope,” Mr Taylor concluded.

+64 9 302 2972

manager@eds.org.nz



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